

Petitioner also asserts other issues such as financial constraints, lack of legal consultation, and misleading and contradictory statements. None of these arguments are articulated in a manner that gives rise to a reason to provide relief and none are supported by evidence.

Respondent argues that prejudice would occur if claims as far back as 2013 were to be permitted due to the passage of time. Respondent presented evidence of clean ups that occurred in 2023 and 2024 which changed the area at issue. Respondent also argues that even now, Petitioner has not articulated the claims in manner that puts Respondent on adequate notice. Respondent has provided evidence that it would suffer significant prejudice if Petitioner were granted the relief requested.

In summary, it appears that the Amended Petition is untimely for the claims at issue. Even if relief were available, Petitioner has failed to meet his burden of showing that the delay was caused by any of the statutory grounds. The Amended Petition is **DENIED**. Petitioner provided a proposed Order, however, it was stapled to a Notice of Lodging and cannot be unstapled. Respondent is ordered to prepare an Order consistent with the Court's ruling. The clerk is directed to close the file and vacate any future dates.

STEVENSON, ET AL. VS. MERCY MEDICAL HOSPITAL, ET AL.

CASE NUMBER: 25CV-0206834

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 13, 2026 to Plaintiffs Brandy Louise Stevenson and the Estate of Jeffrey Stevenson and their counsel, Lipeles Law Group, APC for failure to appear on April 20, 2026 as ordered on February 17, 2026 and failure to timely serve pleadings as required by CRC 3.110. Plaintiffs have not responded to the Order to Show Cause and therefore provided no excuse for failing to appear on April 20, 2026 and failing to comply with CRC 3.110.

Plaintiffs' counsel was present on December 15, 2025 when the February 17, 2026 review hearing was set. The tentative ruling on February 17, 2026 set the April 20, 2026 hearing date with no appearance necessary. Plaintiffs had notice of the April 20, 2026 review hearing and did not appear.

Plaintiffs named several Defendants in their Complaint filed January 16, 2025. Plaintiffs filed a First Amended Complaint (FAC) on February 11, 2026. Attached to the FAC is a proof of electronic service on the Defendants who had already appeared. No other proofs of service for the FAC have been filed. This is the current status of each Defendant for which the FAC is not at issue:

- Mercy Medical Hospital and Ibraheem Kayali, MD, served electronically with FAC but have not answered.
- Dignity Health, no proof of service for FAC.
- Jesse Arnold ACNP/FNP, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Jeremy Wellman PA, dismissed from Complaint on August 12, 2025 but then renamed in FAC and not served.
- Matther Herring MD, not served with FAC.
- Julie McClelland MD, dismissed from Complaint on February 3, 2026 but then renamed in FAC and not served.
- Kiruba Dharaneeswaran MD, not served with FAC. Demurrer to Complaint dropped from calendar on April 20, 2026 based on filing of FAC.

Defendants Dana Detwiler CRNA, Khiara Scolari PA-C, and Pardeep Athwal MD have filed Answers to the FAC. CRC 3.110 sets timelines in which a plaintiff must serve a defendant and how quickly a plaintiff must seek

default if a responsive pleading is not filed. Plaintiffs appear to have completely ignored these requirements. Further, Plaintiffs have dismissed Defendants and then brought them back into the case by including them in the FAC. Plaintiffs' actions and inactions are causing unnecessary delays. This matter was filed well over a year ago and is still not at issue. Plaintiffs must take the necessary steps to get the matter at issue.

Monetary sanctions are imposed on Plaintiffs and Plaintiffs' counsel in the amount of \$250 for both failing to appear on April 20, 2026 and failing to comply with CRC 3.110. The clerk is directed to prepare the Order of Sanctions. This matter is on calendar at 9:00 a.m. today for a review hearing and the Court will address all parties at that time regarding when this matter will be at issue.

9:00 a.m. – Review Hearings

COGLITORE HOLDINGS LLC VS. BUNDY

CASE NUMBER: 26CVG-00180

This matter is on calendar for status of accounting. The Inventory has been filed. The Judgement of Abandonment By Default (Salvage) entered on March 4, 2026 ordered disposal of the mobile home. Several steps need to occur prior to the accounting being available. The matter is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of accounting. **No appearance is necessary on today's calendar.**

CROWN ASSET MANAGEMENT, LLC VS. INTHAVONGSA

CASE NUMBER: 25CVG-00705

This matter is on calendar for review regarding status of judgment or dismissal. The Court notes that Plaintiff filed an Amended Complaint on April 28, 2026 and an Amended Summons issued. There is no corresponding proof of service. Plaintiff is reminded of the timelines set forth in CRC 3.740. The matter is continued to **Monday, August 24, 2026 at 9:00 a.m. in Department 63** for status of service. **No appearance is necessary on today's calendar.**

DISCOVER BANK VS. POPE

CASE NUMBER: 25CVG-00465

This matter is on calendar for review regarding status of CCP § 664.6 Dismissal. Plaintiff's Request for Dismissal with CCP § 664.6 retention was denied on April 27, 2026 because the Request for Dismissal was not signed by Defendant. Plaintiff appeared at the trial on May 4, 2026. Because the matter was on calendar for trial and Plaintiff was unable to proceed, the Court intended to dismiss the matter without prejudice. Plaintiff requested a continuance to file a proper CCP § 664.6 dismissal. The Court allowed the continuance but noted that the matter would be dismissed at the next hearing if a CCP § 664.6 dismissal were not filed. Nothing has been filed since the last hearing. This matter is dismissed without prejudice as Plaintiff was unable to proceed at the time and date set for trial. The clerk is directed to close the file and vacate any future hearing dates. **No appearance is necessary on today's calendar.**

GREAT WEST CASUALTY COMPANY VS. BOYD

CASE NUMBER: 25CVG-00585

This matter is on calendar for review regarding status of default judgment. An Order to Show Cause Re: Sanctions issued on this morning's Law & Motion calendar. The matter is continued to **Monday, August 3, 2026 at 9:00 a.m. in Department 63** for status of default judgment. **No appearance is necessary on today's 9:00 a.m. Resolution Review Calendar.**